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General Knowledge

Indian Polity

STUDY NOTES

High Court

HIGH COURT

Introduction to the High Court of India:

- The High Courts of India form an **integral part** of the judicial system, standing as the **highest courts within each state or union territory.**
- These courts play a crucial role in administering justice and interpreting the laws of the land.
- Each High Court operates as the **chief judicial authority within its jurisdiction**, holding the power to oversee and guide the functioning of subordinate courts in its region.

Establishment and Structure(History):

- The **first High Courts were established in 1862 in Calcutta, Bombay, and Madras** under the **Indian High Courts Act of 1861.**
- Today, India has a network of **25 High Courts** distributed across various states and union territories.
- Each High Court comprises a Chief Justice and other judges, appointed by the President of India after consultation with the Chief Justice of India and the Governor of the respective state.
- In **1866**, a **fourth high court** was established at **Allahabad**.
- The Constitution of India provides for a high court for each state.
- The **Seventh Amendment Act of 1956** authorized the Parliament to establish a common high court for two or more states or for two or more states and a union territory.
- Among the nine union territories, Delhi alone has a separate high court (since 1966).
- The union territories of Jammu and Kashmir and Ladakh have a common high court.
- The other union territories fall under the jurisdiction of different state high courts.
- The Parliament can extend the jurisdiction of a high court to any union territory or exclude the jurisdiction of a high court from any union territory

Important Articles Related to the High Court

The articles in the Indian Constitution that relate to the High Courts are 214–231

Article	Description
214	Each state must have a High Court

215	High Courts are courts of record
216	Each High Court must have a Chief Justice and other judges appointed by the President
217	Deals with the appointment and conditions of High Court judges
221	High Court judges receive salaries determined by Parliament, as well as allowances and leave benefits
226	High Courts can issue writs to any person, authority, or government within their jurisdiction
227	High Courts have the power of superintendence over all courts
231	A common High Court can be established for two or more states

Appointment of Judges

- A procedure is followed for the Appointment of High Court judges. It has been briefed in the pointers below:
  - The **President** appoints the Judges of a High Court.
  - However, before assigning judges to High Courts other than the Chief Justice, the President must contact the Chief Justice of India, the State Governor, and the High Court Chief Justice.
  - According to **Article 222,** the President may transfer High Court judges after consulting with the Chief Justice of India.

Qualifications of Judges

- A person to be qualified for appointment as a Judge of a High Court:
- He must be an Indian citizen.
- Must have served in a judicial capacity in India for at least ten years or for at least 10 years, he must have worked as an advocate in a High Court or two or more such Courts in succession

High Court Judges: Tenure, Removal and Salary

Tenure

- A High Court judge appointed permanently holds office until **age 62.**
- The President decides on any disagreements regarding the age of judges after consulting with the Chief Justice of India; the President's judgement is final.

Removal

- On the suggestion of the Parliament, the President may order the removal of a judge from his position.
- Only **misbehaviour and incapacity** are grounds for removal.
- The order is approved after each House of Parliament gives a speech that is supported by a majority of the entire House and a majority of two-thirds of the total number of members from each House present at the time and voting.

Salary and Emoluments

- According to **Article 221**, a High Court judge is eligible for a pension and leave-of-absence benefits that Parliament may periodically decide upon.
- However, this cannot be altered to the Judge's detriment once appointed

Jurisdiction of High Courts

- High Courts have jurisdiction over both civil and criminal cases, extending to original, appellate, and supervisory jurisdiction.
- They can hear cases involving fundamental rights, interpret constitutional matters, and exercise authority over state laws.
- High Courts also have the power to issue writs (such as Habeas Corpus, Mandamus, Certiorari, Prohibition, and Quo Warranto) under **Article 226 of the Constitution.**

Original Jurisdiction

- Some High Courts, such as those in Bombay, Calcutta, Madras, and Delhi, have original jurisdiction in civil and criminal cases, meaning they can hear cases directly rather than through an appeal from a lower court.
- This typically includes civil cases of substantial financial value and criminal cases involving serious offences in specified territories within the High Court's jurisdiction.
- Original jurisdiction also covers certain matters such as maritime disputes, wills and probate, divorce cases, and disputes involving the enforcement of fundamental rights (for specific cases).

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Appellate Jurisdiction

- High Courts exercise appellate jurisdiction by hearing appeals against judgments, orders, or decisions of lower courts (such as district or session courts) within their territorial limits.
- Appellate jurisdiction is divided into two types:
- Civil Appellate Jurisdiction: High Courts can hear appeals in civil cases, including those involving property disputes, contracts, family law, and commercial law, depending on the value and nature of the case.
- Criminal Appellate Jurisdiction: High Courts handle appeals in criminal cases, especially those involving significant sentences, such as life imprisonment or death sentences, to ensure due process and legal correctness.

Supervisory Jurisdiction

- High Courts have supervisory jurisdiction over all subordinate courts within their jurisdiction as provided under Article 227 of the Constitution.
- Through this power, they can ensure that lower courts function within the bounds of law and rectify any judicial irregularities, procedural errors, or lapses in duty.
- Supervisory jurisdiction also allows High Courts to review the decisions of tribunals and quasi-judicial bodies under their jurisdiction

List of High Courts in India

High Court	Year of Establishment	Territorial Jurisdiction	Seat	Benches
Allahabad High Court	1866	Uttar Pradesh	Allahabad	7
Andhra Pradesh High Court	2019	Andhra Pradesh	Amaravati	1
Bombay High Court	1862	Maharashtra and Goa	Mumbai	4
Calcutta High Court	1862	West Bengal and Andaman & Nicobar Islands	Kolkata	3
Chhattisgarh High Court	2000	Chhattisgarh	Bilaspur	1

Delhi High Court	1966	Delhi	New Delhi	1
Gauhati High Court	1948	Assam, Arunachal Pradesh, Nagaland, Manipur, Mizoram, Tripura	Guwahati	5
Gujarat High Court	1960	Gujarat	Gandhinagar	1
Himachal Pradesh High Court	1948	Himachal Pradesh	Shimla	1
Jammu & Kashmir High Court	1928	Jammu & Kashmir	Srinagar & Jammu	2
Jharkhand High Court	2000	Jharkhand	Ranchi	1
Karnataka High Court	1884	Karnataka	Bengaluru	1
Kerala High Court	1956	Kerala	Ernakulam	1
Madhya Pradesh High Court	1956	Madhya Pradesh	Jabalpur	2
Madras High Court	1862	Tamil Nadu and Puducherry	Chennai	3
Manipur High Court	1972	Manipur	Imphal	1
Meghalaya High Court	1972	Meghalaya	Shillong	1
Orissa High Court	1948	Odisha	Cuttack	1
Patna High Court	1916	Bihar	Patna	3
Punjab & Haryana High Court	1947	Punjab, Haryana, and Chandigarh	Chandigarh	1

Rajasthan High Court	1949	Rajasthan	Jodhpur & Jaipur	2
Sikkim High Court	1975	Sikkim	Gangtok	1
Telangana High Court	2019	Telangana	Hyderabad	1
Tripura High Court	1972	Tripura	Agartala	1
Uttarakhand High Court	2000	Uttarakhand	Nainital	1